

Sarvesh Singh Rathore v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 July 2022 · Writ-C No. 13807 of 2022 · Writ-C No. 13807 of 2022 ·
Writ disposed; petitioner relegated to clause 6.5; recovery stayed ten weeks.

HEADNOTE

Without deciding merits, the High Court disposed of a writ seeking mandamus to decide an objection to an alleged forged power connection and consequential demand, granting liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in a time-bound manner after hearing, and keeping recovery in abeyance for ten weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Sarvesh Singh Rathore petitioned the Allahabad High Court for a mandamus directing the distribution licensee (respondent no. 3) to decide his objection dated 16 April 2022, followed by a reminder dated 5 May 2022, against what he described as a forged and fabricated power connection No. 605/4107/065282 and its consequential demand. Counsel for the licensee stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause 6.5 objection as alternative to writ

HOLDING

Without expressing any opinion on merits, the writ seeking mandamus to decide an existing objection to an alleged forged connection and consequential demand was disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within six weeks. If so submitted, the licensee is to decide it in accordance with law within the next four weeks after reasonable opportunity of hearing. Impugned recovery remains in abeyance for ten weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Mandamus to decide an objection to an alleged forged connection and demand was refused on merits; the petitioner was relegated to a clause 6.5 objection before the licensee. ¶ 1

6.5-representation-as-appropriate-remedy The Court treated a Para 6.5 objection to the licensee as the appropriate forum for the disputed demand, with a time-bound decision after hearing. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The dispute over the connection and impugned demand was left to the statutory clause 6.5 objection rather than writ adjudication. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE OBJECTION TO THE ALLEGED FORGED CONNECTION AND THE IMPUGNED DEMAND

The Court expressly declined to express any opinion on merits. ¶ 1